

In both matters, Defendant filed a Response. The Responses were identical.

#### Background

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

**The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.**

A responding party's service, before the hearing on a "deemed admitted" motion, of substantially compliant responses, defeats a propounding party's attempt to have the requests for admissions deemed admitted. Code Civ. Proc. § 2033.280(c); St. Mary v. Superior Court, supra, 223 Cal.App.4th at 776; see also CJER, California Judges Benchbook: Civil Proceedings - Discovery (2024) ("CJER Civ. Proc. Discovery"), § 21.22. A monetary sanction remains strictly mandatory against the party or attorney, or both, whose late response necessitated the making of the motion. Code Civ. Proc. § 2033.280(c); see CJER Civ. Proc. Discovery, § 21.22.

#### Analysis

In the instant matters, the Defendant responded that he in fact provided discovery responses to the Plaintiff; however, the responses were to the Plaintiff's set of Interrogatories. There was no indication that Defendant provided a response to Plaintiff's Request for Admission.

#### Disposition

The court finds that Defendant is making a good faith effort to respond to Plaintiff's requests in that it appears he did make partial responses to Plaintiff's discovery requests. The court also notes that Defendant is self-represented.

The court will continue this motion for 30 days, to give the Defendant the opportunity to substantially comply with the Requests for Admission.

**11. 9:00 AM CASE NUMBER: L25-05488**

**CASE NAME: CAPITAL ONE, N.A. VS. CHERYL RUIZ**

**\*HEARING ON MOTION IN RE:**

**FILED BY:**

**\*TENTATIVE RULING:\***

Parties were ordered to appear on January 20, 2026, to address status of whether Defendant has served on Plaintiff substantially compliant responses to Plaintiff's discovery request.

#### Disposition

No Tentative Ruling will issue.

Parties must appear.

**12. 9:00 AM CASE NUMBER: L25-06376**  
**CASE NAME: JEFFERSON CAPITAL SYSTEMS LLC VS. DARRYL REED**  
**\*HEARING ON MOTION IN RE: FOR JUDGMENT ON THE PLEADINGS**  
**FILED BY: JEFFERSON CAPITAL SYSTEMS LLC**  
**\*TENTATIVE RULING**

Plaintiff filed a Motion for Judgment on the Pleadings on October 17, 2025, with an accompanying Proof of Service. The Motion is unopposed.

#### Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Defendant, in his Answer filed August 8, 2025, marked the box indicating that all of the statements of the Complaint are true.

#### Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party’s admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff’s Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$2,761.12 on a credit card account.

Defendant’s Answer admits that the statements in the Complaint are true.

#### Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. No costs or fees were specifically alleged, so to the extent that the Plaintiff’s Motion is a request for fees, that is denied without prejudice. Plaintiff can file a subsequent request on this issue.
2. Plaintiff shall file the Order.